

Article 12 in Constitution of India

12. Definition

In this part, unless the context otherwise requires, "the State" includes the Government and Parliament of India and the Government and the Legislature of each of the States and all local or other authorities within the territory of India or under the control of the Government of India. Editorial Comment - This article provides the definition of the "state" in India and the various organs which come under it. This definition of the State under Article 12 is applicable only for Part 3 (Fundamental Rights) and Part 4 (Directive Principles of State Policy) of the Constitution of India.

The meaning of "Other Authorities" under Article 12 can be understood by looking at leading case laws such as In the case of Rajasthan State Electricity Board v. Mohanlal, AIR 1967 wherein it was decided that "other authorities is wide enough to include within it every authority created by a statute on which powers are conferred to carry out governmental or quasi-governmental functions and functioning within the territory of India or under the control of the Government of India."

The court further laid down the guidelines for deciding 'any authority' as 'Other Authority' under Article 12, In the case of Ramana Dayaram Shetty v. The International Airport (1979): "If the entire shares are owned by the Government, "If almost the entire expenditure is done by the Government", "If there is a state conferred monopoly in that corporation", "Whenever there is deep and pervasive control by the Government" and "If the functions by the corporation are of Public importance" and lastly, "If a department of the Government is transferred to a corporation."

Indian Courts have interpreted the meaning of 'State' in various contexts over time to extend the dimension of Fundamental Rights.

In the case of University of Madras v. Santa Bai, the Madras High Court evolved the principle of ejusdem generis i.e. of the "like nature". It means that those authorities are covered under the expression 'other authorities' which perform governmental or sovereign functions.

In Sukhdev v. Bhagatram, LIC (Life Insurance Corporation of India) , ONGC (Oil and Natural Gas Corporation) and IFC (International Finance Corporation) were held to be state as they perform very similar functions which seem to be governmental or sovereign functions.

Another set of discussions have been around the fact of the Judiciary becoming part of the state. Eminent Jurists like H.M.Seervai, V.N.Shukla consider judiciary to be State. Their view is supported by Articles 145 and 146 of the Constitution of India.

"It was held that the Supreme Court is empowered to make rules for regulating the practice and procedure of Courts and is also empowered to make appointments of its staff and servants and decide its service conditions."

In Prem Garg v. Excise Commissioner H.P. The Supreme Court held that when rule making power of

the judiciary is concerned, it is 'state'.

There have been contrary opinions on this subject too. In *Rati Lal v. State of Bombay*, it was held that the judiciary is not state for the purpose of Article 12. In *A.R.Antulay v. R.S.Nayak* and *N.S.Mirajkar v. State of Maharashtra*, it has been observed that “when rule making power of judiciary is concerned it is state but when exercise of judicial power is concerned it is not state.”

Thus, the word 'state' under Article 12 jurisprudence has evolved in India through various interpretations and discussions in the High courts and the Supreme court. It has been given a wider meaning which ensures that Part-III of the constitution can be applied to a larger extent.

References

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